



CHAPTER cliii.

An Act to confer additional powers upon the Midland Railway Company for the construction of works and the acquisition of lands and for other purposes.

A.D. 1905.

[4th August 1905.]

WHEREAS it is expedient that the Midland Railway Company (in this Act called "the Company") should be empowered to make the new roads and footpath and other works and to exercise the other powers in this Act mentioned and also to acquire retain hold and use additional lands for the purposes of this Act and for extending their station siding warehouse coal-wharf depôt mineral goods and other accommodation and for other purposes connected with their undertaking:

And whereas plans and sections showing the lines and levels of the new roads and footpath and other works by this Act authorised and plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also books of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerks of the peace for the several counties and riding within which the said works will be made or the said lands are situate and those plans sections and books of reference are in this Act referred to as the deposited plans sections and books of reference respectively:

And whereas it is expedient that the time now limited by the Midland Railway Act 1899 as extended by the Midland Railway Act 1902 for the compulsory purchase of lands for and for the construction of certain railways by the said Act of 1899 authorised should be extended as provided by this Act:

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And whereas it is expedient that the time limited by the Midland Railway Act 1902 for the compulsory purchase of lands for the Holbeck Widening and the Whitehall Junction by that Act authorised and for the construction of the said junction should be extended as provided by this Act :

And whereas it is expedient that further powers should be conferred upon the Company and upon the Midland and Great Northern Railways Joint Committee the Norfolk and Suffolk Joint Railways Committee and the Tottenham and Hampstead Joint Committee with respect to the sale or other disposal of lands acquired by them respectively which are not or eventually may not be required for the purposes of their respective undertakings :

And whereas the pier or jetty on piles at Burnham in the county of Somerset authorised by the Somerset Central Railway Act 1855 (in this Act referred to as "the Burnham Pier") is no longer required for the purposes for which it was authorised and an agreement (in this Act called "the scheduled agreement") for the transfer of the Burnham Pier to the urban district council of Burnham (in this Act referred to as "the Burnham District Council") has been entered into and is set forth in the Second Schedule to this Act and it is expedient that the said agreement be confirmed and carried into effect and that powers should be conferred upon the Somerset and Dorset Railway Company and their lessees the London and South Western Railway Company and the Company to enable them to transfer to the Burnham District Council and to enable the Burnham District Council to take and accept a transfer of and to vest in them the Burnham Pier and to empower the Burnham District Council to sell lease or otherwise dispose of the same :

And whereas it is expedient that some of the powers and provisions of existing Acts relating to the Company should be amended and that further powers should be conferred upon the Company as provided by this Act :

And whereas it is expedient that the Company should be empowered to raise additional capital for the purposes of the works by this Act authorised and for other purposes of this Act and also for the making and enlargement of stations sidings warehouses engine-sheds workshops coal wharves depôts mineral goods and other works and conveniences for the accommodation of the traffic on their railways and for completing the purchase of lands and buildings for any of the above-mentioned purposes and for providing additional plant and rolling-stock block and

interlocking signals and for the general purposes of their A.D. 1905.
undertaking :

And whereas the objects of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited for all purposes as the Midland Short title.
Railway Act 1905.

2. The following Acts and parts of Acts are except where Incorporation of
expressly varied by this Act incorporated with and form part of general Acts.
this Act (that is to say) :—

The Lands Clauses Acts :

The Railways Clauses Consolidation Act 1845 :

Part I. (relating to the construction of a railway) and

Part II. (relating to extension of time) of the Railways
Clauses Act 1863 :

The provisions of the Companies Clauses Consolidation Act
1845 with respect to the following matters (namely) :—

The transfer or transmission of shares ;

The borrowing of money by the Company on mortgage
or bond :

And Part II. (relating to additional capital) and Part III.
(relating to debenture stock) of the Companies Clauses
Act 1863 as amended by subsequent Acts.

3. In this Act the several words and expressions to which Interpretation.
meanings are assigned by the Acts wholly or partially incor-
porated herewith have the same respective meanings unless
there be something in the subject or context repugnant to such
construction.

4. The provisions of sections 18 to 23 of the Railways Protection
Clauses Consolidation Act 1845 shall for the purposes of this of gas and
Act extend and apply to the water and gas mains pipes and water mains
apparatus of any local authority and shall be construed as if of local
"local authority" were mentioned in those sections in addition authorities.
to "company" or "society" Provided that any penalties
recovered under section 23 shall be appropriated to that fund
of the local authority to which their revenues in respect of
water or gas (as the case may be) are appropriated.

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Power to
make new
roads and
footpath.

5. Subject to the provisions of this Act the Company may in the lines shown upon the deposited plans and (so far as the same are shown on the deposited sections) in accordance with the levels shown on those sections make the new roads and footpath hereinafter described with all proper works and conveniences connected therewith and may exercise the powers hereinafter mentioned and may enter upon take and use such of the lands delineated on those plans and described in the deposited books of reference relating thereto as may be required for those purposes (that is to say):—

(1) The Company may make a new road in the parish of Armley and Bramley in the city and county borough of Leeds in the west riding of the county of York commencing by a junction with Canal Street at a point thereon 11 chains or thereabouts measured in a north-westerly direction from its junction with Wellington Road and terminating in Carlisle Street at a point $2\frac{1}{2}$ chains or thereabouts measured in a north-westerly direction from its junction with Wellington Road and may stop up so much of Canal Street as is situate between the point of commencement of the intended new road and Wellington Road and they may enter upon take and use for the purposes of the Company and of the said new road lands in the said parish city and county borough situate on both sides of and adjoining Canal Street Winford Street Delhi Street Herbert Street Marsden Street and Longley Street and on the north-east side of and adjoining Carlisle Street including the sites of the portions of the said streets adjoining the said lands and in connection therewith may alter the levels of such streets so far as may be necessary for the purpose of connecting the same with the said new road:

(2) The Company may make two new roads wholly situate in the parish city and county borough of Sheffield in the west riding of the county of York (that is to say):—

No. 1 commencing on the eastern side of Queen's Road at or near the junction therewith of Duchess Road and terminating by a junction with Norfolk Park Road at or near the junction therewith of Park Grange Road;

No. 2 commencing in East Bank Road at or near the junction therewith of Olive Grove Road and terminating by a junction with Granville Road at or near the eastern side of the bridge carrying the said road over the Company's railway ;

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and may stop up so much of Duchess Road and Norfolk Park Road as lies between the commencement and termination of the said intended new Road No. 1 and so much of East Bank Road and Farm Road as lies between the commencement of the intended new Road No. 2 and the junction of Farm Road with Queen's Road and they may enter upon take and use for the purposes of the Company and of the said new roads lands in the said parish city and county borough lying between and adjoining Duchess Road Farm Road and Queen's Road and also lying on the eastern side of and adjoining East Bank Road and between that road and Knowle House :

- (3) The Company may make a new road situate in the parish and borough of Chesterfield and in the parish of Tapton in the rural district of Chesterfield in the county of Derby commencing on the west side of the River Rother at the eastern face of the bridge at Chesterfield Station carrying the Company's railway over the said river and over the road on the south side of such river and terminating by a junction with Crow Lane at a point thereon 13 chains or thereabouts measured in an easterly direction from the eastern face of the bridge carrying the Company's railway over the said lane and in connection therewith may make a deviation of the River Rother for a length of 140 yards or thereabouts immediately south-east of the said bridge at Chesterfield Station and the Company may stop up so much of the site and soil of Crow Lane and the public footpath on the northern side thereof as lies between the point of termination of the said intended new road and the western side of the Company's property and also may stop up so much of the public footpath to Pettyclose Lane as lies between the said lane and the western end of Crow Lane and also so much of the public footpath extending from the

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eastern face of the said bridge at Chesterfield Station to Crow Lane as lies between the said bridge and the said lane and the Company may enter upon take and use for the purposes of the Company and of the said intended works lands in the said parishes of Chesterfield and Tapton :

- (4) The Company may make a new footpath in the parish of Aston in the city and county borough of Birmingham and in the parish and urban district of Erdington in the county of Warwick commencing by a junction with the road known as Common Lane at a point thereon 3 chains or thereabouts measured in a southerly direction from the centre of the Company's railway from Birmingham to Derby and terminating by a junction with the public road from Erdington to Ward End known as Black Pit Lane at a point thereon 2 chains or thereabouts measured in a southerly direction from the centre of the bridge carrying that road over the Company's railway near Bromford Bridge Station and may enter upon take and use for the purposes of the Company and of the said new footpath lands in the said parishes city and county borough and urban district lying on both sides of and adjoining the Company's said railway and lying between the Bromford Bridge Station thereon and the London and North Western Railway Company's railway from Aston to Stechford near the Aston Church Road and the Company may stop up so much of Common Lane and the existing footpath on both sides of the Company's railway as lies between the point of commencement of the intended new footpath and the River Rea.

For protection of
Duke of
Norfolk.

6. For the protection of the Most Noble Henry Duke of Norfolk and his sequels in estate and notwithstanding anything in this Act contained the following provisions shall unless otherwise agreed in writing have effect (that is to say) :—

- (1) The Company shall not stop up or interfere with the user of any portion of Duchess Road Norfolk Park Road East Bank Road or Farm Road until the new Road No. 2 by this Act authorised in the county borough of Sheffield shall have been completed to

the satisfaction of two justices and opened for public use in accordance with the provisions of the section of this Act the marginal note of which is "As to stopping up of roads &c.":

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- (2) If the Company stop up any portion of Duchess Road or Norfolk Park Road they shall forthwith proceed with and complete with all reasonable despatch the new Road No. 1 by this Act authorised in the county borough of Sheffield and open the same for public use in accordance with the provisions of the said section of this Act the marginal note of which is "As to stopping up of roads &c.":

- (3) The said new Road No. 2 shall be constructed on the lines shown on the deposited plans and the Company shall not enter upon take or use any lands of the said Henry Duke of Norfolk east of the eastern boundary of that road.

7. The following provisions for the protection and benefit of the lord mayor aldermen and citizens of the city of Leeds (in this section called "the corporation") shall (unless otherwise agreed in writing between the corporation and the Company) have effect (that is to say):—

For protection of corporation of Leeds.

- (1) Before commencing the construction of any works in connection with the new street in the city of Leeds by this Act authorised the Company shall give not less than seven days' notice of their intention to commence such works to the corporation and the corporation shall at the costs and charges of the Company—

(A) Divert the overflow and other sewers water gas and electric mains pipes or apparatus at present laid in Canal Street in the manner shown by the plan "A" signed by Thomas Hewson junior on behalf of the corporation and by William Barton Worthington on behalf of the Company (which plan is hereinafter referred to as "the signed plan A");

(B) Sewer drain level flag pave and make good Carlisle Street and also when constructed the new road in Leeds by this Act authorised shown on the signed plan A:

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- (2) The Company shall at their own costs and charges construct for the use of the corporation in connection with their new Wortley Gasworks siding accommodation as nearly as may be in the position and manner shown by the colour red on the plan "B" signed by Thomas Hewson junior on behalf of the corporation and by William Barton Worthington on behalf of the Company (hereinafter referred to as "the signed plan B") with all necessary bridges junctions points and conveniences such new siding accommodation to be made before the taking up of the existing sidings used by the corporation :
- (3) The Company shall immediately after stopping up Canal Street and before altering or interfering in any way with the existing sidings used by the corporation make and maintain bridges over Wellington Road and Geldard Road respectively with the clear spans measured on the square across the road shown on the signed plan B and with a headway throughout measured from the present surface level of the roadway of not less than sixteen feet six inches in the case of the bridge over Wellington Road and of not less than sixteen feet in the case of the bridge over Geldard Road and there shall be a space open to the sky between the new bridge and the existing bridge over each of the said roads for light and air of not less than fifteen feet for the full width of the said roads and neither of the said new bridges shall be of a greater width than the thirty-two feet shown on the signed plan B :
- (4) The Company shall set up and affix one lamp under the new bridge in Wellington Road and one lamp under the new bridge in Geldard Road at such places as the corporation may require and the Company shall keep the same lighted during such times as the corporation shall require with gas or other artificial light and shall pay to the corporation on demand the annual cost of lighting maintaining and keeping lighted such lamps :
- (5) The said new bridges shall be so constructed and maintained as to prevent as far as reasonably possible the dripping of water :

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- (6) The Company in carrying out the works authorised shall not unreasonably interfere in any way with the traffic on any tramways for the time being of the corporation in Wellington Road and Geldard Road respectively but shall make all such provision and do all such things as may be reasonably necessary to enable the same to be continued without interruption and if by reason of the construction of the works of the Company the corporation shall suffer any loss or damage or be put to any expense in relation to the said tramways or it shall be necessary or expedient temporarily to remove or discontinue the use of any tramway or part of a tramway the amount of such loss damage or expense inclusive of the expense incurred by the corporation in constructing a temporary tramway in the same or any adjoining road shall be paid by the Company:
- (7) The Company at all times shall allow attachments of such a nature and in such positions as may be reasonably approved by the principal engineer of the Company to be made to and shall afford such other facilities under or in respect of their said bridges as may be necessary or proper to enable the corporation to work their tramways by electricity on the overhead system and the Company shall erect any wires necessary for the purposes of their railways crossing Wellington Road and Geldard Road by the said new bridges in such positions as shall avoid interference with the electrical equipment and working of any tramways of the corporation laid along or over such roads or either of them:
- (8) The Company shall on demand pay to the corporation all expenses incurred by them in altering relaying making good and maintaining any sewers and drains gas water or electric mains and pipes or tramways or tramway equipment interfered with or affected by the works by this Act authorised:
- (9) The Company shall not break up any street or tramway or interfere with any sewer drain or watercourse or any gas water or electric main pipe or apparatus of the corporation until they shall have given to the city engineer of the city seven clear days' notice in

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writing of their intention to commence the intended works accompanied by plans and sections and other necessary particulars showing the works proposed to be executed by the Company so far as they affect the streets tramways sewers drains watercourses gas water and electric mains and apparatus proposed to be interfered with :

(10) Where the surface of any street has been interfered with or disturbed by the Company in constructing the works or exercising the powers by this Act authorised the Company shall well and sufficiently and to the satisfaction of the corporation restore the surface of the street so interfered with or disturbed and shall keep the same in efficient repair for one year from such restoration :

(11) In case of any difference arising between the Company and the corporation with respect to any of the matters in this section contained such difference shall be settled and determined by an engineer to be appointed in default of agreement and on the application of either party by the President of the Institution of Civil Engineers.

For protection of lord mayor aldermen and citizens of city of Sheffield.

8. In executing the works of the new Roads No. 1 and No. 2 in the parish city and county borough of Sheffield by this Act authorised the Company shall be subject to the following conditions for the protection of the lord mayor aldermen and citizens of the city and county borough of Sheffield (in this section called "the corporation") except so far as may be otherwise agreed between the Company and the corporation:—

(1) The said Roads No. 1 and No. 2 and the works connected therewith shall be constructed on the lines shown on the deposited plans and the surface of such roads shall be formed and completed in all respects to the satisfaction of the city surveyor of the corporation in such manner and of such materials as he may reasonably require :

(2) The gradients of the said Road No. 2 when constructed shall not be steeper throughout any part of the entire length thereof than 1 in 25 :

(3) If by reason of the exercise of the powers of this Act any additional water mains pipes sewers or drains or any increased lengths or capacity thereof be rendered

necessary in the said roads the same shall be respectively provided laid and constructed by the corporation at the cost of the Company and all necessary alterations to existing roads sewers drains watercourses water electric light cable or other pipes or wires shall be executed to the reasonable satisfaction of the said city surveyor at the like cost:

- (4) If by reason of the exercise of the powers of this Act the corporation shall at any time incur additional cost in repairing or altering any existing water main pipe or apparatus or any existing sewer or drain or electric cable in the said roads such additional cost shall be repaid by the Company to the corporation:
- (5) If the Company shall interfere with any existing sewer or drain in the said roads they shall to the reasonable satisfaction of the said city surveyor and at the cost of the Company and in accordance with plans and sections to be previously submitted to and reasonably approved of by the said city surveyor construct a sufficient substituted sewer or drain and connect the same with the sewer or drain so interfered with and any alteration or diversion of existing roads watercourses sewers or drains which may reasonably be deemed necessary by the corporation in consequence of the works of the Company shall be carried out in the same manner Provided that any such construction alteration or diversion shall be executed at the cost of the Company by the corporation in lieu of the Company if the corporation shall so desire:
- (6) The Company shall after the completion of the said roads in all things maintain and repair the surface thereof to the reasonable satisfaction of the said city surveyor until the same shall be taken over by the corporation as highways repairable by the inhabitants at large:
- (7) If any difference shall arise between the Company and the corporation with respect to any of the matters in this section contained such difference shall be settled and determined by an engineer to be appointed in default of agreement on the application of either party by the President of the Institution of Civil Engineers.

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For protec-
tion of cor-
poration of
Birmingham.

9. For the protection of the lord mayor aldermen and citizens of the city of Birmingham (in this section called "the corporation") the following provisions shall have effect unless otherwise agreed between the corporation and the Company (that is to say):—

- (1) The Company when constructing the new footpath in the parishes of Aston and Erdington authorised by this Act shall at the same time and in connection therewith construct a new bridge for carrying the said footpath over the River Tame and such bridge shall be of not less width than that of the bridge on the north side of the Company's railway carrying the existing footpath over the River Tame and shall be constructed so as to provide an effective nett waterway of not less than five hundred and forty square feet and a gradient on the bed of the said river of one in six hundred and fifty and the Company when widening their railway at Bromford shall construct the extensions of the bridge carrying their railway over the River Tame at the same gradients and of the same dimensions as the existing bridge carrying the said railway and so as to provide a similar waterway and gradient as aforesaid :
- (2) The said new footpath and bridge shall for ever hereafter be maintained by and at the expense of the Company :
- (3) The Company when widening their railway at Washwood Heath shall construct the extensions of the culverts carrying the River Rea under their railway at the same gradients and of the same dimensions and discharging capacity as the existing culverts :
- (4) Any difference which may arise between the corporation and the Company under this section shall unless otherwise agreed be determined by an engineer to be appointed on the application of either party by the President of the Institution of Civil Engineers subject to and in accordance with the provisions of the Arbitration Act 1889.

Provisions as
to repair of
roads &c.

10. Subject to the provisions of this Act the new roads to be made under the authority of the section of this Act of which the marginal note is "Power to make new roads and

footpath" shall when made and completed be repaired and maintained by and at the expense of the same parties in the same manner and to the same extent as other new roads of a similar nature within the parish in which any such road will be situate are from time to time liable to be repaired or maintained. A.D. 1905.

If any question shall arise between the Company and any of such parties as to the due completion of any such road such question shall from time to time be determined by two justices on the application of either of the parties in difference and after not less than seven days' notice to both parties of the sitting of such justices for the purpose and the certificate of such justices of the due completion of such road or footpath shall be conclusive evidence of the fact so certified.

11. Where this Act authorises the making of a new road or footpath or the diversion of a road or footpath and the stopping up of an existing road or footpath or portion thereof such stopping up shall not take place until two justices shall have certified that the new road or footpath has been completed to their satisfaction and is open for public use. As to stopping up of roads &c.

Before applying to the justices for their certificate the Company shall give to the road authority of the district in which the existing road or footpath is situate seven days' notice in writing of their intention to apply for the same.

As from the date of the said certificate all rights of way over or along the existing road or footpath or portion thereof so stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company :

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

12. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate Power to acquire lands for general purposes.

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In the west riding of the county of York—

Lands in the parish and urban district of Bingley lying on the west side of and adjoining the Company's goods yard at Bingley Station and south of and in part adjoining Bellman Row.

In the county of Derby—

Lands in the parish of Chapel-en-le-Frith lying over and on both sides of the Dove Holes Tunnel on the Company's railway from Derby to Manchester and situate from 7 chains to 25 chains or thereabouts from the north-western end of the said tunnel;

Lands in the parish and urban district of Whittington lying on the north side of and adjoining the Company's Sheepbridge Branch and between the junction of the said branch with the Company's railway from Derby to Leeds and the works of the Whittington Gas Company Limited;

Lands in the parish and urban district of Bakewell lying on the west side of and adjoining the Company's railway from Derby to Buxton and north of the goods shed at Bakewell Station;

Lands in the parish of Bretby lying on the north-east side of and adjoining the Ashby Road extending for a distance of $8\frac{1}{2}$ chains or thereabouts in a north-westerly direction from the bridge carrying the said road over the Company's Bretby Colliery Branch:

In the parish of Newhall in the urban district of Swadlincote District—

Lands lying on each side of and adjoining High Street and west of Maple Hill and in front of and opposite to the Wesleyan Chapel;

Lands lying on the north-east side of and adjoining High Street and lying between Abbott Street and Park Street;

Lands lying on the north-east side of and adjoining High Street and near to Victoria Villa;

Lands lying on the south-west side of and adjoining Union Road in front of the Hope and Anchor Inn:

In the parish of Swadlincote in the urban district of Swadlincote District—

Lands lying on the north-east side of and adjoining Newhall Road situate 4 chains or thereabouts west of the junction of the said road with Midland Road;

Lands lying on the west side of and adjoining Midland Road at the junction of that road with Market Street and on the north side of Market Street;

Lands lying on the south-west side of and adjoining High Street opposite the London City and Midland Bank;

Lands lying on the west side of and adjoining Alexandra Road at the junction of that road with West Street:

In the parish of Church Gresley in the urban district of Swadlincote District—

Lands lying on the west side of and adjoining High Street near the junction of that street with Coppice Side and opposite the Foresters Arms;

Lands lying on the south side of and adjoining West Street and on the east side of and adjoining Alexandra Road at or near the junction thereof;

Lands lying between and adjoining the north-east side of Wilmot Road and the south side of Hastings Road at the junction thereof;

Lands lying on the north side of and adjoining Church Street and on both sides of the junction therewith of School Street;

Lands lying on the south side of and adjoining Church Street and east of the Church Rooms;

Lands lying on the south side of Castle Road between George Street and Spring Street:

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In the parish of Woodville—

Lands lying on the south-west side of and adjoining High Street between Sun Street and the Shoulder of Mutton Inn;

Lands lying on the north side of and adjoining High Street and adjoining or near to Peace's beer-house;

Lands in the parish of Castle Gresley lying on the north side of and adjoining the Company's railway from Burton to Leicester and west of the public road leading from Burton to Measham near to Gresley Station.

In the county of Leicester—

In the parish and urban district of Ashby-de-la-Zouch—

Lands lying on the west side of Derby Street and on the north side of Market Street at the junction thereof;

Lands lying on the west side of and adjoining Bath Street between Station Road and Kilwardby Street.

In the county of Rutland—

Lands in the parish of Oakham on the west side of and adjoining the Company's railway from Syston to Peterborough and north of and near to Oakham Station.

In the county of Northampton and Soke of Peterborough—

Lands in the parish of Peterborough Within in the city and borough of Peterborough lying on the west side of and adjoining the Midland Railway from Syston to Peterborough south of and adjoining Westwood Road.

In the county of Buckingham—

Lands in the parish of Olney on the south-west side of and adjoining the Company's railway from Northampton to Bedford and near to Olney Station.

As to private rights of way over lands taken compulsorily.

13. All private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation

shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. A.D. 1905.

14. The powers granted by this Act for the compulsory purchase of lands shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

15. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively. Power to owners to grant easements &c.

16. And whereas in the construction of the new roads and footpath by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto Therefore the following provisions shall have effect:— Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are hereinafter included in the term "the owner" and the said properties are hereinafter referred to as "the scheduled properties":
- (2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such

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portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise :

- (3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (hereinafter referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed :
- (4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage sustained by the owner by severance or otherwise as shall be awarded by the tribunal :
- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner :

(6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice :

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(7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

17. The time limited by the Midland Railway Act 1899 as extended by the Midland Railway Act 1902 for the compulsory purchase of lands authorised to be acquired under the first-mentioned Act for the purposes of the Low Moor Junctions the Halifax Connecting Lines the Huddersfield Railway and the Thornhill Junction is hereby further extended for a period of two years from the thirteenth day of July one thousand nine hundred and five.

Extension of
time for pur-
chase of cer-
tain lands by
Company.

18. Notwithstanding anything in this Act contained the Company shall not acquire compulsorily the properties numbered on the deposited plans relating to the Halifax Connecting Lines

For pro-
tection of
James
Booth.

A.D. 1905. authorised by the Midland Railway Act 1899 9 and 10 in the county borough of Halifax in the west riding of the county of York unless they shall have given to James Booth or other the owner for the time being of those properties notice to treat in accordance with the provisions of the Lands Clauses Acts within six months after the thirteenth day of July one thousand nine hundred and five.

Extension of
time for con-
struction of
certain rail-
ways by
Company.

19. The period limited by the Midland Railway Act 1899 for the completion of the Low Moor Junctions the Halifax Connecting Lines the Huddersfield Railway and the Thornhill Junction by that Act authorised as extended by the Midland Railway Act 1902 is hereby further extended for a period of three years from the thirteenth day of July one thousand nine hundred and seven and sections 44 and 45 of the said Act of 1899 shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act.

If the said works be not completed within the said period of three years then on the expiration of that period the powers by the said Act of 1899 and this Act respectively granted to the Company for making and completing the same respectively or otherwise relating thereto shall cease except as to so much thereof respectively as shall then be completed.

Extension of
time for pur-
chase of lands
in connection
with Holbeck
Widening and
Whitehall
Junction.

20. The time limited by the Midland Railway Act 1902 for the compulsory purchase of lands for the purposes of the Holbeck Widening and the Whitehall Junction by that Act authorised is hereby extended for a period of two years from the thirty-first day of July one thousand nine hundred and five.

Extension of
time for com-
pletion of
Whitehall
Junction.

21. The period limited by the Midland Railway Act 1902 for the completion of the Whitehall Junction by that Act authorised is hereby extended for a period of three years from the thirty-first day of July one thousand nine hundred and seven and sections 12 and 13 of the said Act of 1902 shall be read and construed as if the period by this Act limited for the completion thereof had been the period limited by that Act.

If the said works be not completed within the said period of three years then on the expiration of that period the powers by the said Act of 1902 and this Act respectively granted for making and completing the same or otherwise relating thereto shall cease except as to so much thereof as shall be then completed.

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Extending
time for sale
of certain
superfluous
lands by
Company.

22. The Company may notwithstanding anything to the contrary in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Company with which that Act is incorporated retain and hold any lands belonging to them which have not yet been applied to the purposes of the Company or sold or disposed of by them for the periods following (that is to say) As regards such of the said lands as are situate near to or adjoining any railway or station of the Company or as the Company may be of opinion that they may require for the purposes of stations sidings or other conveniences for the period of ten years from the passing of this Act and as regards the other of the said lands for the period of two years from the passing of this Act.

But the Company shall at the expiration of such respective periods of ten years and two years sell and dispose of all such parts of those lands respectively as shall not then have been applied to or are not then required for the purposes of their undertaking as superfluous lands.

23. The Midland and Great Northern Railways Joint Committee (in this section referred to as "the committee") may notwithstanding anything to the contrary in the Lands Clauses Consolidation Act 1845 or in any Act relating to the committee with which that Act is incorporated retain and hold any lands belonging to the committee which have not yet been applied to the purposes of the committee or sold or disposed of for the periods following (that is to say) As regards such of the said lands as are situate near to or adjoining any railway or station of the committee or as the committee may be of opinion that they may require for the purposes of stations sidings or other conveniences for the period of ten years from the passing of this Act and as regards the other of the said lands for the period of two years from the passing of this Act.

Extending
time for sale
of certain
superfluous
lands by
Midland and
Great Nor-
thern Rail-
ways Joint
Committee.

But the committee shall at the expiration of such respective periods of ten years and two years sell and dispose of all such parts of those lands respectively as shall not then have been applied to or are not then required for the purposes of their undertaking as superfluous lands.

24. The Norfolk and Suffolk Joint Railways Committee (in this section referred to as "the committee") may notwithstanding anything to the contrary in the Lands Clauses Consolidation Act 1845 or in any Act relating to the committee with which that Act is incorporated retain and hold any lands

Extending
time for sale
of certain
superfluous
lands by
Norfolk and
Suffolk Joint
Railways
Committee.

A.D. 1905. — belonging to them which have not yet been applied to the purposes of the committee or sold or disposed of by them for the periods following (that is to say) As regards such of the said lands as are situate near to or adjoining any railway or station of the committee or as the committee may be of opinion that they may require for the purposes of stations sidings or other conveniences for the period of ten years from the passing of this Act and as regards the other of the said lands for the period of two years from the passing of this Act.

But the committee shall at the expiration of such respective periods of ten years and two years sell and dispose of all such parts of those lands respectively as shall not then have been applied to or are not then required for the purposes of their undertaking as superfluous lands.

Extending
time for sale
of certain
superfluous
lands by Tot-
tenham and
Hampstead
Joint Com-
mittee.

25. The Tottenham and Hampstead Joint Committee (in this section referred to as "the committee") may notwithstanding anything to the contrary in the Lands Clauses Consolidation Act 1845 or in any Act relating to the committee with which that Act is incorporated retain and hold any lands belonging to them which have not yet been applied to the purposes of the committee or sold or disposed of by them for the periods following (that is to say) As regards such of the said lands as are situate near to or adjoining any railway or station of the committee or as the committee may be of opinion that they may require for the purposes of stations sidings or other conveniences for the period of ten years from the passing of this Act and as regards the other of the said lands for the period of two years from the passing of this Act.

But the committee shall at the expiration of such respective periods of ten years and two years sell and dispose of all such parts of those lands respectively as shall not then have been applied to or are not then required for the purposes of their undertaking as superfluous lands.

Transfer of
Burnham
Pier to Burn-
ham Urban
District
Council and
provisions
with refer-
ence to said
pier.

26.—(1) The scheduled agreement is hereby confirmed and made binding upon the parties thereto and shall be carried into effect accordingly.

(2) The tolls which the Burnham District Council may demand levy and receive for the use of the Burnham Pier shall not exceed the following (that is to say):—

For any person using the Burnham Pier for walking thereon or landing upon or embarking from any portion of the said pier from or to any boat or vessel near thereto for each

time not exceeding twopence For every bath or sedan chair (including the person or persons in charge) taken on the said pier for each time any sum not exceeding fourpence.

(3) The Burnham District Council may make alter and enforce byelaws for the management use regulation and protection of the said pier erections approaches works and other conveniences erected or to be erected thereon and for the purpose of levying the tolls payable in respect thereof and such byelaws may provide for imposing a penalty not exceeding forty shillings in the event of a breach or non-observance of any of the byelaws No byelaw under this section shall come into operation until it has received the allowance and confirmation of the Board of Trade which shall be sufficient for all purposes.

(4) The Burnham District Council shall out of the revenue to be derived from the tolls and charges levied and made in respect of the said pier and of the erections approaches works and other conveniences connected therewith and the rents and annual profits to be derived under any lease or other disposition of the said pier by the said Council pay the costs of repairing and maintaining the said pier and of constructing erecting repairing and maintaining the erections approaches works and other conveniences to be erected and constructed as aforesaid and any surplus of the revenue after payment of the said costs shall be carried to the district fund.

(5) All expenses of and incidental to the maintenance of the said pier and all charges on the revenue therefrom which that revenue may be insufficient to defray shall be charged on and paid out of the district fund and general district rate or some part or parts thereof as the Burnham District Council may think fit and the Burnham District Council shall include in each general district rate the amount if any which it is estimated may be required to cover the deficiency accruing during the currency of the rate or which is required to make up any deficiency which has occurred during any previous period.

(6) The limits within which the Burnham District Council shall have authority and within which the powers of the pier-master may be exercised shall comprise the Burnham Pier.

(7) All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life

A.D. 1905. or in exercising or using the lifeboat or the apparatus for saving life and all persons brought ashore from any vessel in distress shall at all times have free ingress passage and egress to along and from the Burnham Pier.

(8) The Burnham District Council shall whenever required by the Board of Trade provide at their own expense and to the satisfaction of the Board of Trade a site near the Burnham Pier and build on that site a house or other proper accommodation for a lifeboat rocket apparatus and other life-saving apparatus. If the Burnham District Council fail to comply with this subsection they shall be liable to a penalty not exceeding ten pounds for every month during which the failure continues.

(9) The officers of the coastguard and all other persons for the time being actually employed in connection with the lifeboat or the apparatus for saving life may either permanently or temporarily without payment attach or cause to be attached to any part of the Burnham Pier spars and other apparatus for saving life and may also either in course of using or of exercising the apparatus for saving life fire rockets over the said pier.

(10) The Burnham District Council shall at all times keep at convenient places on the Burnham Pier and in obedience to any requirements which may be made by the Board of Trade lifebuoys and lifelines in good order and fit and ready for use.

(11) The Burnham District Council shall at or near the Burnham Pier during the whole time of the repairing of the same exhibit and keep burning at their own expense every night from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Board of Trade from time to time require or approve. If the Burnham District Council fail to comply in any respect with the provisions of this subsection they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

(12) The Burnham District Council shall at the outer extremity of the Burnham Pier exhibit and keep burning from sunset to sunrise such lights (if any) and take such other steps for the prevention of danger to navigation as the Corporation of Trinity House Deptford Strond shall from time to time direct. If the Burnham District Council fail to comply in any respect with the provisions of this subsection they shall for each day in which they so fail be liable to a penalty not exceeding twenty pounds.

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(13) The Burnham District Council may sell lease or otherwise dispose of the said pier in such manner and for such consideration and on such terms and conditions as they may think fit and may make do and execute any deed act or thing necessary for effectuating any such sale lease or other disposition of the same and upon any sale of the said pier any moneys received as the consideration for the same and upon any lease or other disposition of the said pier any moneys received by way of premium for the same shall be applied to such purposes as the Burnham District Council with the approval of the Local Government Board shall determine.

(14) Nothing in the scheduled agreement contained shall authorise or enable the Somerset and Dorset Railway Company or their lessees the London and South Western Railway Company and the Company or any person to whom the said pier may be sold leased or disposed of to remove any portion of the masonry of the said pier or the piles between such masonry and the Burnham sea wall except so far as may be necessary in repairing and maintaining the said pier.

(15) Section 61 of the Somerset Central Railway Act 1855 is incorporated with and forms part of this Act.

(16) The provisions of this section shall come into operation as from the expiration of three months from the passing of this Act on which date the scheduled agreement takes effect.

27. The Company may subject to the provisions of Part II. of the Companies Clauses Act 1863 raise by the creation and issue of new preferred converted ordinary stock and new deferred converted ordinary stock or of Midland Railway two and a half per centum perpetual preference stock such sums of money as they shall think necessary not exceeding three hundred thousand pounds exclusive of the other moneys which they are or may be by any other Act or Acts of Parliament authorised to raise If and so far as any such moneys are raised by the creation and issue of new preferred and new deferred converted ordinary stock the Company shall raise the same by the creation and issue of the said stocks in equal proportions And any preference stock created under the powers of this section shall be deemed to be part of and shall rank *pari passu* with and shall confer the like privileges and shall bear the same dividend and be subject to the like restrictions as the existing Midland Railway two and a half per centum perpetual preference stock.

Power to
Company
to raise addi-
tional money
by creation
of stock.

A.D. 1905.

Qualifica-
tions of new
stock.

28. Except as by or under the powers of this Act otherwise provided all new preferred and new deferred converted ordinary stock issued under the powers of this Act shall in proportion to the amount of stock held by the same person at the same time entitle the respective holders of such new stock to the same dividends and profits and confer on them the like qualifications and the like rights of voting as the like amount paid up on the existing stock of the Company other than and except stock to which any guaranteed or preferential dividend of a fixed amount without further participation in the profits of the Company shall have been assigned.

Power to
borrow.

29. The Company may subject to the provisions of this Act borrow on mortgage of the undertaking or raise by the creation and issue of debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 55 of the Midland Railway Act 1894 any sum or sums not exceeding in the whole one-third part of the amount of the additional capital by this Act authorised to be raised and at the time actually issued by stock.

But no part thereof shall be borrowed until the whole of the capital stock at the time issued shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock has been issued and accepted and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid in reference to such capital has been given which certificate shall be sufficient evidence thereof.

Provisions
with respect
to appoint-
ment of a
receiver.

30. Every provision in any Act passed before the present session of Parliament whereby the Company is authorised to raise by borrowing money for the purposes of their undertaking with respect to the appointment of a receiver for enforcing payment by the Company of arrears of interest or principal or principal and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under any such provision.

The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on

their mortgages by the appointment of a receiver And in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole. A.D. 1905.

31. All mortgages and bonds granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing thereof shall during the continuance of such mortgages and bonds and subject to the provisions of the Acts under which such mortgages and bonds were respectively granted have priority over any mortgages granted by virtue of this Act but nothing in this section contained shall affect any priority of the interest of any debenture stock at any time created and issued by the Company. Existing mortgages to have priority.

32. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied only to the purposes of this Act and of any other Act of the present session of Parliament and to the general purposes of the undertaking of the Company being in each case purposes to which capital is properly applicable. Application of moneys.

33. The Company may apply for or towards all or any of the purposes of this Act to which capital is properly applicable any sums of money which they have already raised or are authorised to raise by any of their Acts and which are not required for the purposes to which they are by those Acts made specially applicable. Company may apply corporate funds.

34. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845. Interest not to be paid on calls paid up.

35. The Company shall not out of any money by this Act authorised to be raised by them pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking. Deposits for future Bills not to be paid out of capital.

A.D. 1905.

Provision as
to general
Railway
Acts.

36. Nothing in this Act contained shall exempt any of the companies or committees upon whom powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies or committees respectively.

Costs of Act.

37. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULES referred to in the foregoing Act.

FIRST SCHEDULE.

DESCRIBING PROPERTIES OF WHICH PARTS ONLY ARE REQUIRED TO BE TAKEN BY THE COMPANY.

Nos. on deposited Plans.	Parish or other Area.	Description of Property.
NEW ROAD AND ADDITIONAL LANDS AT LEEDS.		
3	City and county borough of Leeds.	Yard and railway sidings.
4	Ditto	- Courtyard called Longley Street privy cellar sewer gas and water pipes.
NEW ROADS AND ADDITIONAL LANDS AT SHEFFIELD.		
10	City and county borough of Sheffield.	Shrubbery.
13	Ditto	- Plantation.
15	Ditto	- Carriage drive and shrubbery.
16	Ditto	- Lodge and yard.
19	Ditto	- Carriage drive garden and shrubbery.
ADDITIONAL LANDS AT SHEEPBRIDGE.		
2	Urban district of Whittington	Land.
3	Ditto	- Land and sidings.
6	Ditto	- Field and half river.
ADDITIONAL LANDS AT BRETBY.		
2	Parish of Bretby	- Gardens.
3	Ditto	- Garden.
5	Ditto	- Garden path.
6	Ditto	- Fowl run.

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Nos. on deposited Plans.	Parish or other Area.	Description of Property.
ADDITIONAL LANDS AT NEWHALL.		
1	Urban district of Swadlincote District.	Forecourt.
2	Ditto	Ditto.
3	Ditto	Garden.
4	Ditto	Ditto.
5	Ditto	Chapel forecourt.
6	Ditto	Roadway.
7	Ditto	Yard.
8	Ditto	Gardens.
9	Ditto	Garden.
10	Ditto	Outhouses yard and garden.
11	Ditto	Public-house yard.
12	Ditto	Garden.
ADDITIONAL LANDS AT SWADLINCOTE.		
13	Urban district of Swadlincote District.	Garden.
14	Ditto	Market stalls storehouses public convenience and land.
15	Ditto	Garden.
16	Ditto	Gardens.
17	Ditto	Garden.
18	Ditto	Stable and yard.
19	Ditto	Garden.
20	Ditto	Land.
21	Ditto	Pottery yard.
22	Ditto	Pottery yard offices and workshops.
ADDITIONAL LANDS AT CHURCH GRESLEY.		
28	Urban district of Swadlincote District.	Forecourt.
29	Ditto	Ditto.
30	Ditto	Ditto.
31	Ditto	Ditto.
32	Ditto	Gardens.
33	Ditto	Roadway forecourt and yard.
34	Ditto	Garden and forecourt.
35	Ditto	Ditto.
36	Ditto	Ditto.
37	Ditto	Ditto.
38	Ditto	Ditto.
39	Ditto	Ditto.
41	Ditto	Cottage forecourt and garden.
43	Ditto	Yard and garden.
44	Ditto	Ditto.
ADDITIONAL LANDS AT WOODVILLE.		
1	Parish of Woodville	Gardens.
2	Ditto	Garden.
3	Ditto	Garden and yard.

A.D. 1905.

SECOND SCHEDULE.

AN AGREEMENT made the nineteenth day of May one thousand nine hundred and five between the SOMERSET AND DORSET RAILWAY COMPANY (hereinafter called "the Somerset Company") of the first part the LONDON AND SOUTH WESTERN RAILWAY COMPANY and the MIDLAND RAILWAY COMPANY (hereinafter called "the lessee companies") of the second part and the URBAN DISTRICT COUNCIL OF BURNHAM in the county of Somerset (hereinafter called "the council") of the third part.

WHEREAS by the Somerset Central Railway Act 1855 the Somerset Central Railway Company were authorised to construct and maintain (inter alia) in continuation of their railway at Burnham aforesaid a pier or jetty on piles and a paved way to low-water mark (hereinafter called "the pier") and it was by the said Act provided that the pier should be part of the Somerset Central Railway :

And whereas the pier was duly constructed :

And whereas by the Somerset and Dorset Companies Amalgamation Act 1862 the Somerset Central Railway Company and the Dorset Central Railway Company were amalgamated into a new company called the Somerset and Dorset Railway Company :

And whereas by the Somerset and Dorset Railway Leasing Act 1876 the Somerset and Dorset Railway of which the pier formed a part became and is now vested in the lessee companies for the term of nine hundred and ninety-nine years from the first day of November one thousand eight hundred and seventy-five :

And whereas the lessee companies have maintained the pier up to the present time but have discontinued the user thereof as being now unnecessary for the purposes of their undertaking and they and the Somerset Company are desirous of abandoning the same altogether and are seeking the necessary powers for that purpose in the Midland Railway Company's Bill of the present session of Parliament hereinafter called the Midland Railway Bill :

And whereas the council are willing to take over the pier and as the public authority and lessees of the foreshore are desirous that they should be empowered to acquire the same :

And whereas it has been agreed between the parties hereto that subject to the sanction of Parliament the council shall take over the pier together with all rights and powers of the lessee companies and the Somerset Company

or any or either of them in connection therewith and that the council shall relieve the lessee companies and the Somerset Company from all liability in respect thereof: A.D. 1905.

Now therefore it is hereby mutually agreed between the parties hereto as follows:—

The council and those claiming from or under them shall as from the expiration of three months from the passing of the Act into which the Midland Railway Bill shall pass take over and adopt the pier in perpetuity together with all rights and powers as hereinafter mentioned but subject to the obligations contained in the said Somerset Central Act 1855 so far as the same relate to the pier and shall hold harmless and keep indemnified the Somerset Company and the lessee companies against all liability to maintain and repair the pier and from any charges or liability in respect of the same and from and against all their obligations in respect of the pier contained in the said Act and shall erect the fence hereinafter referred to.

The Somerset Company and the lessee companies shall on the necessary powers being obtained for that purpose transfer the pier to the council together with all rights and powers of the lessee companies and the Somerset Company or any or either of them in connection therewith whether under the Somerset Central Railway Act 1855 or the Act into which the Midland Railway Bill shall pass or otherwise and in particular with the right to levy tolls rates and charges in respect of the pier and to sell lease or otherwise dispose of the same in such manner and for such consideration and on such terms or conditions as the council may think fit And also the right and power to construct erect and maintain upon and in connection with the pier lavatories sanitary conveniences shelters toll houses barriers gates sewers and drains approaches and other works in connection therewith and also shall convey to the council for the purpose of giving access to the said pier a strip of land of the width of sixty-one feet or thereabouts and bounded on the north by the Esplanade and the slip there on the south by land known as the Pier Estate on the west partly by the pier and partly by the wall belonging to the Somerset Drainage Commissioners and on the east by an imaginary line drawn in a line with the Queen's Hotel and running north and south the council at its own expense erecting a wooden fence along such imaginary line subject nevertheless to all rights of way and other rights (if any) over and affecting the said strip of land.

This agreement is subject to and conditional upon the Midland Railway Bill being passed by Parliament and is also subject to and conditional upon its being confirmed by the Act into which that Bill shall pass and is also subject to such alterations (if any) as Parliament may think fit to make therein but if either House of Parliament shall make any material alteration in this agreement it shall be competent to any party hereto by notice in writing to the others to be given before the Midland Railway Bill is read the third time in the House of Lords to withdraw from the same.

A.D. 1905.

In witness whereof the parties hereto have caused their respective common seals to be hereunto affixed the day and year first above written.

The common seal of the Somerset and Dorset Railway }
Company affixed hereto in the presence of—

L.S.

A. L. CHARLES

Secretary of the Company.

The common seal of the London and South Western }
Railway Company affixed hereto in the presence of—

L.S.

G. KNIGHT

Secretary.

The common seal of the Midland Railway Company }
affixed hereto in the presence of—

L.S.

JAMES W. OXLEY

Director of the Company

Spenneth Weetwood near Leeds.

The common seal of the Burnham Urban District }
Council was hereunto affixed at a meeting of the said }
council in the presence of—

L.S.

H. J. KER THOMPSON

Chairman.

D. S. WATSON

Clerk.

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